STATE OF OREGON

JACKSON COUNTY CIRCUIT COURT

LAURA CHANCELLOR Plaintiff, vs. ASHLAND PARKS AND RECREATION DEPARTMENT, CITY OF ASHLAND, MICHAEL BLACK, an individual, JOSEPH HYDE, an individual, JASON MINICA, an individual, CHRIS WARD, an individual, MARK TRENTON, an individual Defendants	**Case No.: 22CV06217** **EXHIBIT A**

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Employee Handbook for Ashland Parks and Recreation

Approved by the
Ashland Parks and Recreation Commission
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EMPLOYEE HANDBOOK

ASHLAND PARKS AND RECREATION COMMISSION

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Section I – Scope

The following rules, regulations, and policies shall govern all non-contracted regular employees of the Parks and Recreation Commission.

Section II - Definitions

Annual evaluation	Summary of how an employee has performed in relation to the assigned job duties and expectations for that position. In the first year of employment, employees are reviewed at six months and twelve months. Subsequently, they are reviewed annually. The six-month, twelve-month, and 24-month reviews are tied to merit increases.
Classification	Employment assignment and wage range designation consisting of similar job descriptions.
Commission	The Parks and Recreation Commission of the City of Ashland.
Compensatory time off	Time off from work to compensate the employee for overtime work.
Disciplinary action	Reprimand, warning, suspension, demotion, or dismissal.
Duty day	Any day or shift on which an employee is scheduled to be available for work.
Employee	Anyone earning wages for employment with the Ashland Parks and Recreation Department.
Examination	Test for the purpose of evaluating an applicant.
FLSA (Exempt)	Fair Labor Standards Act – Employees who are salaried and not compensated for hours worked in excess of 40 per week.
Full-time employee	Regular employee assigned to an employment classification scheduled to work year-round a minimum of 40 hours per week or 2080 hours per year and eligible to receive all benefits associated with the classified position.
Immediate family	Husband, wife, son, daughter, father, mother, brother, sister, stepchildren, foster children, father-in-law, mother-in-law, brother-in-law, sister-in-law, grandparents, or relatives living in the same household.
Layoff	Termination of an employee due to lack of work or financial resources.
Merit increase	Salary increase that is given on merit.

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Month	One calendar month.
Nepotism	The disparate treatment, either favorable or unfavorable, of an employee by reason of blood or marital relationship.
Overtime	Authorized time worked in excess of forty hours in a regular scheduled work week. Authorized vacation, sick leave, comp time, and holiday pay shall be considered as time worked.
Part-time employee	Employee who works in a regular (non-temporary or seasonal) position for a minimum of 20 hours/week on a consistent basis and is eligible for health benefits.
Probationary employee	Employee who has been hired but has not completed the six- month probationary period.
Promotion	Change of position for an employee from a position in one classification to another classification with a higher wage scale.
Rate of compensation	Amount of compensation that an employee receives for work performed in a specific period (the hourly wage for non-exempt employees or the monthly salary divided by 173.33 for exempt employees).
Regular employee	Employee who has been retained in a classified position after completing a probationary period. Any regular employee who works 50% or more is eligible to receive full benefits.
Salary advancement	Increase from one step to the next higher step within a salary range for the same classification of position. Step increases are merit increases.
Sick time	Time accrued and allowed by the Ashland Parks and Recreation Department to an employee for the employee's sickness or injury with pay and with no loss of seniority or other benefits.
Standby	When an employee is required to respond to emergencies as designated by the Park Superintendent.
Supervisor	Any person responsible to a higher divisional or departmental level authority who directs the work of others.
Temporary employee	Employee assigned to a position for a limited time or a definite period of time.
Vacation time	Time accrued and allowed by the Ashland Parks and Recreation Department to an employee for the employee's time off with pay and no loss of seniority or other benefits.

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Vacation cap	Total amount of vacation time an employee is allowed to accrue before being required to either take vacation time or lose future accruals.
Work week	Seven consecutive days; Saturday thru Friday.
Work schedules	Regularly scheduled hours consisting of days of week and hours per day. Most employees work a regular 10 day / 80 hour bi-weekly schedule while others work a 9 day / 80 hour bi-weekly schedule.

The Director is responsible for hiring and releasing all Parks and Recreation personnel.

Section III -- General Policies

3.1 Probationary Period

The probationary period is an integral part of the employee selection process and provides the department with the opportunity to upgrade and improve the department by observing a new employee's work, training, aiding new employees in the adjustment of their positions, and by providing an opportunity to reject any employee whose work performance fails to meet required work standards. Every new employee hired shall serve a minimum probationary period of six (6) months, after which they shall be considered a regular employee, upon written approval from the Director. The probationary period may be extended by the Director if an adequate determination of the employee's suitability for the position cannot be made at the end of six months. The department may terminate employees for any reason including but not limited to the shifting of work schedules and job classification. Termination of a probationary employee shall not be subject to the grievance procedure under Section III.

3.2 Discrimination

The provisions of this manual shall be applied to all employees without discrimination with respect to race, color, religion, sex, age, marital status, national origin, or mental or physical disability.

Section IV – Attendance, Scheduling, and Leaves

4.1 Attendance and Tardiness

Full-time employees shall perform a full day's work each and every scheduled working day. Excessive, unexcused tardiness shall be a cause for disciplinary action. If an employee, for some unavoidable reason, cannot report for work, the employee is expected to notify his or her supervisor or department head two hours before their scheduled shift. [This requirement will be waived in the event that the employee is physically unable to notify his or her supervisor.] Notification must not occur more than two hours following the scheduled shift start time. Absence from work without permission or without notice will be construed as indifference to the department's interests and may result in a disciplinary action or termination. Failure to comply with this rule will result in disciplinary action.

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4.2 Hours of Operation

The hours during which the Parks and Recreation Department operates shall be determined by the Director of the department. Generally, the Parks and Recreation office is operated between the hours of 8:00 AM and 5:00 PM Monday through Friday. Park facilities are typically open from 7:00 AM to sunset.

4.3 Work Week Schedule

A standard work week schedule shall consist of five (5) consecutive days, which may include Saturdays and Sundays. Example: an employee may be scheduled to work Thursday, Friday, Saturday, Sunday, and Monday, which would complete the work week. The department reserves the right to modify this schedule to meet the operational needs of the department. An example of a modified schedule is the 9/80 schedule allowing employees to work a predetermined schedule over a nine-day period, totaling 80 hours in two weeks. Alternative schedules are at the sole discretion of the Director.

4.4 Workday

A workday shall consist of 8 ½ or 9 consecutive hours, which includes either ½ hour or 1 hour for a meal period that will not be paid. The department reserves the right to schedule employees on a split shift to meet the operational needs of the department.

4.5 Workday Schedules

All employees will be scheduled to work on a regular work shift and each shift will have regular starting and ending times. Before an individual's normal work shift can be changed, the employee must be notified in writing 14 days prior to the change in shift.

4.6 Rest Periods

Approximately mid-way through each four (4) consecutive hours worked, a rest period of fifteen minutes will be provided. If an employee is scheduled to work more than a six (6) hour shift, a minimum ½-hour meal break will be provided.

4.7 Bereavement Leave

An employee may be granted five (5) calendar days bereavement leave, with regular pay, in the event of death in the immediate family. (See definition for Immediate Family.)

4.8 Sick Leave

Time accrued and allowed by the Ashland Parks and Recreation Department to an employee for the employee's sickness or injury with pay and with no loss of seniority or other benefits.

4.9 Vacation Leave

Time accrued and allowed by the Ashland Parks and Recreation Department to an employee for the employee's time off with pay and no loss of seniority and other benefits. For Parks Division staff, vacation requests must be approved by Park Superintendent two weeks prior to scheduled vacation.

4.10 Other Leaves of Absence

A. Leave of Absence without pay

1. Family Medical Leave Act — Leave without pay will be granted to qualifying employees under federal and state guidelines.

This policy applies to all full-time and regular part-time employees who qualify for leave based on the following criteria:

To qualify for Family and Medical Leave under the Federal Act, an employee must have been employed by the City for at least 12 months and worked at least 1,250 hours over the previous 12-month period.

To qualify for leave under the Oregon Family Leave Act, employees must have been employed with the City for at least 180 days in order to take leave to care for a newborn, newly adopted or newly placed foster child. To qualify for all other Oregon Leave benefits, an employee must have been employed by the City for at least 180 days and worked at least an average of 25 hours per week.

2. Other Leave without Pay — Leaves of absence without pay not to exceed ninety (90) calendar days may be granted upon establishment of reasonable justification in the instances where the work of the department will not be seriously handicapped by the temporary absence of the employee. Requests for such leaves must be in writing. If an employee is on leave without pay for more than three weeks, the department will need reimbursement for health insurance premiums. Normally, such leave will not be approved for an employee for the purpose of accepting employment outside the department. Exhausting vacation and sick leave and calling in sick or absent – unless approved by the Director – will be considered an abuse of leave and thereby subject to discipline up to and including termination.

B Integration with Worker's Compensation — When an employee suffers a work-related injury or illness, the Parks Department's obligation to pay under this sick leave Article is limited to the difference between any payment received under Worker's Compensation laws and employee's regular pay, minus state and federal deductions. In such instances, no charges will be made against accrued sick leave for the time employee is absent from work to receive medical treatment on the date a work-related injury or illness occurs and leave for the first three (3) days following the injury or illness. Thereafter, pro rated charges will be made against accrued sick leave, unless employee is absent from work for a work-related injury or illness that exceeds ninety (90) calendar days. In situations where an employee's work-related injury or illness exceeds ninety (90) calendar days, Parks will credit back sick leave benefits paid to the employee during that period to the sick leave bank.

When employee receives a check from Worker's Compensation, employee must photocopy the check before cashing and deliver the photocopy to Payroll. Once Payroll receives the photocopy, two-thirds of the hours are added back to the employee's sick leave bank and appropriate adjustments are made to employee's pay. (Worker's Compensation pays two-thirds of employee's normal wage and Parks pays the other 1/3 using employee's sick leave.)

C. Jury Duty — Employees shall be granted leaves of absence with pay for jury service provided that the employee turn in any money received for the service. Upon being excused from jury service for any remaining portion of the workday, the employee shall immediately contact the supervisor for their assignment for the remainder of that day.

1. Court Appearances — Leave with pay shall be granted for appearance before a court, legislative committee, judicial, or quasi-judicial body as a witness in response to a subpoena or other direction by proper authority, provided that the regular pay of such employee shall be reduced by an amount equal to any compensation received as witness fees.

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D. Court Appearances related to employment — Leaves of absence with pay shall be granted for attendance in court in connection with an employee's officially assigned duties, including the time required for travel to the court and return to the employee's headquarters.

E. Educational Leave — After completing one (1) year of continuous service, an employee, upon written request, may be granted a leave of absence without pay by the department for the purpose of upgrading his or her professional ability through enrollment in educational courses directly related to employment at an accredited school or course of study. The period of such leave of absence shall not exceed one year, but may be renewed or extended upon request of the employee and approval of the department head. One-year leaves of absence, with requested extensions for educational purposes, may not be provided more than once in any three (3) year period. The employee's replacement shall be considered a temporary employee. When ordered by the employee's department head, employees may also be granted time off with pay for educational purposes, for reasonable lengths of time, to attend conferences, seminars, briefing sessions, training programs, or other programs of a similar nature that are intended to improve or upgrade the employee's skill and professional ability. When attending a conference, an employee is not eligible for overtime compensation.

F Military Leave — Military leave shall be granted in accordance with ORS 408.240.

G Failure to Return From Leave — Any employee who is granted a leave of absence and who, for any reason, fails to return to work at the expiration of said leave of absence, shall be considered as having resigned their position with the department, and the position shall be declared vacated except and unless the employee, prior to the expiration of the leave of absence, has furnished evidence of being unable to work by reason of sickness, physical disability, or legitimate reason beyond the employee's control.

4.11 Uniforms, Protective Clothing, Devices

If an employee is required to wear a uniform, protective clothing, or use any type of protective device, such article shall be provided by the department. Replacements shall be provided by the department upon surrender of the article, at no cost to the employee. Lost articles or damage to articles due to negligence shall be reimbursed to the department by the employee. The department shall provide a safe place for the storage of such articles. Failure of an employee to wear such required uniform, protective clothing, or use such protective devices as prescribed by the department shall be cause for disciplinary action set forth in Section VIII hereof. Employees who work within the parks system will receive a clothing allowance of $100 each year, which can be used within the fiscal year (July 1 through June 30) for the purchase of work shirts, pants, shorts, coats, or footwear not provided by the department.

4.12 Travel Expenses (see attached travel forms)

A. Employees who travel on department business shall be reimbursed for their expenses.
B. Reimbursements will be on the basis of the actual expense at reasonable rates.
C. Travel may be by public carrier, department owned vehicle, or employee's private vehicle. If employees use their own cars, they will be reimbursed at the current mileage rate set by the department. The director has the discretion of determining the mode of transportation for any work-related trip.

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4.13 Legal Liability

The department shall purchase liability insurance in such amounts as to, at a minimum, cover the maximum liability amounts set forth in ORS 30.270 for the protection of all employees against claims filed against them that are incurred in or arising out of the performance of their official duties. The premiums for such insurance shall be paid by the department.

Section V – Compensation

5.1 Pay Periods

Employees shall be paid on a biweekly basis, every other Friday, and receive 26 paychecks per year. In the event a regularly scheduled pay date falls on a holiday, the last preceding workday shall be the regular pay date.

5.2 Call-Back Time

Employees called back to work shall receive overtime pay with the guaranteed minimum of two and one-half hours (2 ½) for the work for which they are called back. This section applies only when call-back results in hours worked that are not annexed consecutively to one end or the other of the working day or working shift. This section does not apply to scheduled overtime, call-in times annexed to the beginning of the work shift, or holdover times annexed to the end of the work shift or work.

5.3 Acting in Charge

When an employee is designated as the person responsible for temporarily fulfilling a higher level of responsibility as approved by their superintendent for a minimum of three days, that employee is eligible to receive a 5% increase in hourly rate of pay.

5.4 Out of Class

Similarly to one who acts in charge, an employee who temporarily fulfills a higher level of responsibility for an extended period of time is described as working "out of class" and receives a 5% increase in hourly rate of pay for the duration of that time period.

5.5 Overtime

The department has the right to assign overtime work as required in a manner deemed most advantageous to the department, and consistent with the requirements of a municipal service and the public interest. Employees shall be compensated at the rate of one-and-one-half times the regular rate for hours worked beyond a 40-hour work week.

5.6 Holiday Overtime

If a full-time, classified employee is required to work a regularly scheduled holiday, the employee will earn the regularly scheduled holiday pay at the regular rate plus overtime pay for the number of hours worked. The holiday must fall on the employee's day off in order for the employee to bank the holiday leave. If it is the employee's normal day to work, employee gets paid for eight hours of holiday and eight hours of work but can't bank the holiday pay. Maximum holiday bank is 24 hours.

5.7 Comp Time

Time off from work to compensate the employee for overtime work. Comp time is determined at the overtime rate of time-and-one-half. The cap for comp time is 40 hours, after which the employee shall be paid at time-and-one-half.

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5.8 Standby Time

When the Park / Recreation Superintendent(s) designates an employee to respond to an emergency or to be available after hours to respond to a potential emergency, and the employee is required to work beyond his or her normal 40-hour work week, that employee is compensated at the rate of 5% over his or her regular hourly wage. If the employee is called in to respond to the emergency, they receive pay at time-and-one-half.

5.9 Form of Compensation

Compensation for authorized overtime call-back and holiday work shall be paid in the form of pay at the applicable rate. The department may, upon request of an employee, and depending on operating requirements of the department, grant compensatory time off at the applicable rate in lieu of overtime pay.

Rates of Vacation Accrual

0 – 3 years – Accrued at 3.69 hours / 26 pay periods per year. Employee does not accrue during first six months' probationary period. At conclusion of six months of satisfactory employment, employee receives lump sum balance equivalent to six months of accrued leave. At four years, employee receives a 16-hour bonus of vacation time.

4 – 8 years – Accrued at 4.62 hours / 26 pay periods per year. At nine years, employee receives a 24-hour bonus of vacation time.

9 – 13 years – Accrued at 5.54 hours / 26 pay periods per year. At 14 years, employee receives a 24-hour bonus of vacation time.

14 – 18 years – Accrued at 6.77 hours / 26 pay periods per year. At 19 years, employee receives a 24-hour bonus of vacation time.

19th year – Vacation is accrued at 7.39 hours / 26 pay periods per year.

The cap for vacation accrual is 200 hours.

Rates of Sick Accrual

Sick time is accrued at 3.7 hours per pay period / 26 pay periods per year. There is no cap for sick time.

Section VI - Classification of Employees

6.1 Classification Plan

The Director shall prepare a classification plan that will include job descriptions and wage scale ranges.

6.2 Step Increases

Step increases in salary within a classification are merit increases that will be awarded at the discretion of the department Director and may be awarded sooner or later than outlined by the proposed salary schedule.

6.3 Reclassification

A. The Director may recommend to the Commission adjustments to the classification plan and the wage scales associated with each classification.

B. Reclassifications shall not deprive an employee of, or change the date of, eligibility for scheduled pay increases that would otherwise have been granted.

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C. If an employee is promoted or a position is reclassified to a class having a higher wage scale, the employee's hourly rate shall be adjusted to the minimum rate of a new class. However, if the employee's current hourly rate is greater than the minimum rate of the new classification, then adjustment will be made to the next highest rate in the new classification.

D. When an employee is transferred between positions with no change in classification, or is transferred or reclassified to a class having the same salary range, the rate of pay shall remain the same.

E. Reclassification reviews will be conducted with the Director's permission and upon the completion of a Position Classification Questionnaire (see attached PCQ form).

6.4 New Positions

The Director may create new positions and allocate the positions to an appropriate class as approved by the Parks Commission. The Director shall prepare appropriate class specifications as needed.

Section VII - Promotion

7.1 Promotional Probationary

Regular employees promoted to a higher classification shall serve a promotional probationary period of six (6) months. The department may demote an employee on promotional probationary status to the previous position. Demotion of an employee on promotional probationary status shall not be subject to the grievance procedure under Section VIII.

7.2 Promotional Opportunities

It shall be the policy of the department that whenever a vacancy occurs, it shall be open to applicants currently employed within the department as well as others. Vacancies shall be posted in the Parks hops and the department office for a minimum of five (5) working days prior to any filing deadline to allow adequate opportunity for current department employees to apply. In the event that two or more applicants for a job are equally qualified, current department employees shall be given first preference. The department shall be the sole judge of an employee's qualifications and abilities.

7.3 Recall from Layoff

Recall from layoff exceeding five (5) working days shall be by certified letter sent to the employee at the last known address furnished to the department by the employee. The department may use any other means to return an employee sooner.

Section VIII - Conduct, Discipline, Termination, and Appeal

8.1 Personal Appearance and Conduct

All employees are expected to maintain high standards of appearance and conduct. Personal appearance and conduct appropriate to the employee's position are important in gaining favorable public opinion of the department's service. Each employee should strive to maintain a neat, clean, and well-groomed appearance.

A. Employees in the uniform service should pay particular attention to being in proper uniform and present a neat and well-groomed appearance.

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B. Neatness of work performed is important. Proper attitude, courtesy and conduct are important to the department. All employees are engaged in public relations work and, as such, are representatives for the department, regardless of whether public contacts are made directly or indirectly, or whether they are by telephone or in person. Employees shall be courteous, efficient, and helpful to all in their work.

8.2 Causes for Warnings, Suspension, or Dismissal

Disciplinary action may be imposed upon any employee for failing to fulfill his or her employment responsibilities. Conduct reflecting discredit upon the Parks Department, or which is a direct hindrance to the effective performance of Parks functions, shall be considered good cause for disciplinary action. General reasons for which an employee may be disciplined include, but are not limited to:

A. Drinking intoxicating beverages or using illegal drugs on the job, or arriving on the job under the influence of intoxicating beverages or illegal drugs.

B. Violating a lawful duty, insubordination, breach of discipline, or incompetence.

C. Being absent from work without permission or failing to report to the supervisor or department head when absent.

D. Being habitually absent or tardy.

E. Failing to perform assigned work in an efficient manner, being wasteful of material, property, or working time.

F. Using abusive language or conduct.

G. Failing to work cooperatively with fellow employees so that work is hindered or falls below required standards.

H. Committing a felony or being convicted of a misdemeanor.

I. Use of religious, political or fraternal influence in the pursuit of Parks business.

J. Willful or flagrant violation of safety rules.

K. Theft of time, property, or materials.

8.3 Discipline and Discharge

Any of the following steps may be cause for discipline or discharge; all steps do not need to be completed for discipline or discharge to occur. Any disciplinary action imposed upon an employee shall be protested only as a grievance through the grievance procedure.

Disciplinary action may include the following:

A. Oral reprimand (followed up with a written note for personnel file, which shall be signed by the employee, with a copy for employee)
B. Written reprimand
C. Demotion
D. Suspension
E. Discharge

In the administration of discipline, the department shall follow due process as required by law.

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Discharge

An employee having less than six (6) months of continuous service shall serve at the pleasure of the department. An employee having continuous service in excess of six (6) months shall be discharged only for cause. If the Director or other supervisor determines that there is cause for discharge, that person shall suspend the employee without pay for five (5) calendar days and shall deliver to the employee a written notice of such suspension and pending dismissal. Such notice shall specify the principal grounds for such action. Unless otherwise resolved, the dismissal of any employee shall become effective at the end of the five-day suspension. Protest of the discharge of any employee shall be made only through the grievance procedure set forth in Section VIII hereof.

8.4 Grievance Procedure

Any grievance or dispute, which may arise concerning the application, meaning, or interpretation of this manual, shall be settled in the following manner:

Step 1: The affected employee shall take up the grievance or dispute with the employee's supervisor within seventy-two (72) hours of its occurrence, excluding Saturday, Sunday, or holidays. The supervisor shall address the matter within three (3) working days in writing.

Step 2: If the grievance has not been settled between the affected employee and the supervisor, it may be presented in writing by the employee to the Director within seventy-two (72) hours, excluding Saturday, Sunday, or holidays, after the response specified in Step 1 is due. The written notice shall include details of the grievance, the section of this manual allegedly violated, and specific remedy requested. The Director shall respond to the employee in writing within five (5) working days after receipt thereof. If the employee wishes to speak to the Director on this grievance, his or her immediate supervisor will be present.

Step 3: If the grievance is still not settled, the employee may appeal it to a professional arbitrator. The cost of the arbitration will be split 50/50 between the employee and the department. The employee has seven (7) working days from the completion of the Director's decision to request in writing an arbitration date. The Director has 14 working days to provide the name of the arbitrator and estimated cost(s) of arbitration to the employee. The employee has 24 hours, excluding Saturdays, Sundays, and holidays, to determine if they want to proceed and to notify the Director in writing if they wish to proceed or to discontinue the process. If the decision is to proceed, the arbitration will proceed at the arbitrator's schedule. All decisions of the arbitrator are final and may not be appealed.

8.5 Management Rights

The Ashland Parks and Recreation Commission retains all the customary, usual, and exclusive rights, decision-making prerogatives, functions, and authority connected with or in any way incident to its responsibility to manage the affairs of the Parks and Recreation Department. The rights of employees or the Commission, excluding the management team, are limited to those specifically set forth in this employee handbook.

Without limitation, but by way of illustration, the exclusive prerogatives, functions, and rights of the commission shall include the following:

1. To direct and supervise all operations, functions, and policies of the department in which the employees are employed.

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2. To close or liquidate offices, branches, operations or facilities, or a combination of facilities, or to relocate, reorganize, or combine the work of division, offices, branches, operations or facilities for budgetary or other reasons.
3. To determine the needs for reductions or increases in the work force and the implementation of any decision with regard thereto.
4. To establish, revise, and implement standards for hiring, promotion, work quality, safety, materials, equipment, uniforms, appearance, methods, and procedures.
5. To assign and distribute work within classifications.
6. To contract or sub-contract work as determined by the department.
7. To assign shifts, workdays, and work locations.
8. To direct the activities of the department.
9. To determine the need for and the qualifications of new employees, transfers, and promotions.
10. To discipline or discharge for cause.
11. To determine the need for additional educational courses, training programs, on-the-job training, and to assign employees to such duties for periods to be determined by the department.
12. To introduce new duties and to revise job classifications and duties within the unit.

The exercise of any management prerogative, function, or right set forth above, which is not specifically modified, limited, or abridged by this handbook, is not subject to the grievance procedure or arbitration.

8.6 Strike Prohibition

Participation in a strike shall be unlawful for any public employee (Ashland Municipal Code Section 3.04.090). In the event of a picket line, employees who refuse to cross the picket line shall be deemed to be engaged in prohibited strike and shall be subject to disciplinary action.

8.7 Resignation

In the event of resignation, a written resignation should be submitted to the employee's supervisor or the department head giving as much notice as possible, preferably not less than ten (10) working days. Such action will be a credit to the employee's record and facilitate the hiring and training of a person to fill the vacancy.

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Section IX - Employee Benefits

9.1 Holidays

A. The following shall be recognized as paid holidays:

- New Years Day (January 1)
- Martin Luther King, Jr. Day (3rd Monday in January)
- Washington's Birthday (3rd Monday in February)
- Memorial Day (last Monday in May)
- Independence Day (July 4)
- Labor Day (1st Monday in September)
- Veterans Day (2nd Monday in November)
- Thanksgiving Day (4th Thursday in November)
- Day after Thanksgiving (In lieu of Lincoln's Birthday)
- Christmas Day (December 25)

B. Holidays on Weekends or Leave

Whenever a holiday falls on a Sunday, the succeeding Monday shall be observed as a holiday. Whenever a holiday falls on a Saturday, the preceding Friday shall be observed as a holiday.

C. Holiday Pay

Employees in full-time, classified positions shall earn holiday pay based upon the number of regularly scheduled hours worked per year. Example: Employees regularly scheduled to work 2080 hours per year shall earn 8 hours pay per holiday; employees regularly scheduled to work 1664 hours per year shall earn 6 hours per holiday.

9.2 Health and Wellness Benefits

Other employee benefits include the following (see attached benefits addenda):

- **Health and Dental Benefits Overview**: On the first of the month following completion of 90 days of continuous employment with the department, the employee and family members will be enrolled in the department's health benefits program through CIS (City County Insurance Services). The benefits are administered by Regence Blue Cross Blue Shield of Oregon – Plan V-A. The department pays 95% of the cost of premiums with the employee paying the final 5%, which is deducted from employee's pay pre-tax.
- **Health and Dental Dependents**: Dependents must be added within the first 30 days of employment or during the annual open enrollment period (July). Dependents receive the same coverage as employees.
- **Health Benefits**: $100 annual deductible per family member ($300 maximum per family). After the deductible is satisfied, Plan V-A pays for 90% of the first $5,000 of covered expenses for any eligible service per family member in a calendar year. Once a family member has incurred covered expenses totaling $5,000 in a calendar year, the Plan pays for 100% of covered expenses. Includes vision coverage through VSP (Vision Service Plan).
- **Dental Benefits**: During the first calendar year after coverage becomes effective, Plan III pays 70% of eligible charges for all covered procedures up to an annual limit of $1,500 per family member. If the employee and family members see the dentist at least once per year,

each year the Plan pays an additional 10% of covered services until, in the 4th year, it is paying 100% of covered services up to the annual limit of $1,500 per family member. Includes $1,000 of orthodontic coverage (lifetime maximum). Employees are also given the option of choosing the Willamette Dental plan (see attached for details).

- **Wellness Benefits**: Once eligible for health care benefits, each employee will earn an additional $33 per month that will be paid on the first pay period of each month. The additional pay reimburses employees their annual out-of-pocket expenses for the Regence Blue Cross Blue Shield Plan V-A deductible.

Routine Physical Exams: Blue Cross Blue Shield Plan V covers routine physicals up to a maximum of $175. Under the Wellness Program, employees and qualifying dependents are reimbursed for additional expenses associated with physicals according to the following schedule:

Ages 2 - 18 years	-	Once every 3 years up to $100
Ages 19 - 34 years	-	Once every 5 years ups to $200
Ages 35-59 years	-	Once every 2 years up to $250
Ages 60 and over	-	Once every year up to $250

Procedure for Payment: The department needs specific information from the employee to verify that the charges incurred were for medical services eligible for payment under the Wellness Program. In order for employees to be reimbursed, the following procedures need to be followed:

1. An itemized statement from the physician's office for the services rendered. Submit the charges to Blue Cross for processing. After Blue Cross responds to the claim submitted for these charges you will receive an Explanation of Benefits (commonly referred to as the EOB) stating how and why they processed the claim. Office staff also needs a copy of the EOB to process the reimbursement.
2. The employee will be reimbursed for their out-of-pocket expenses as listed above when:
    a. The department has documented that the expenses incurred were for medical services covered under the Wellness Program; and
    b. The expenses were not applied to the annual deductible since the deductible is covered under Part 1 of the Wellness Program.

Well Baby Care: Well Baby Care covers all in-hospital exams, six doctor's office exams the first year of life, and three exams the second year up to a maximum of $100 for each exam. This includes inoculations, lab, and x-ray expenses.

Inoculations and Immunizations: All inoculations and immunizations for family members two years of age and older will be reimbursed up to the amount that would be charged by the Jackson County Health Department at the time of service.

9.3 Additional Benefits

Deferred Compensation: This optional benefit allows employees to set aside pre-tax earnings for the purpose of investing toward retirement. The program is administered through ING. Effective July 1, 2006, the Parks Commission approved a $15 match for employees enrolled in the program. Employees are eligible to enroll in the program upon obtaining employment with Ashland Parks and Recreation.

Employee Assistance Program: This employer-paid program allows employees and their immediate family members to seek help in dealing with life challenges. For more information visit www.easeeap.com.

Flexible Spending Accounts (optional): Employees are offered the opportunity to participate in Healthcare and Dependent Care Flexible Spending Accounts. These programs allow employees to set aside pre-tax earnings to pay for eligible un-reimbursed medical, dental, vision, and dependent care expenses. For more information, visit www.conexis.org.

HRA VEBA: The commission opted to dedicate .93% of each employee's salary into a dedicated HRA VEBA account on their behalf. HRA VEBA is a tax-free health reimbursement arrangement for public employees in the Northwest.

Life Insurance: Administered by Standard Insurance, this life insurance coverage is employer-paid and represents 100% of employee's annual earnings, subject to a maximum amount of life insurance of $75,000 and a minimum of $20,000.

Long-term Disability Insurance: This benefit equals 50% of employee's insured earnings, reduced by income from other sources.

PERS: All employees are automatically enrolled in the Public Employees Retirement System upon the successful conclusion of their 6-month probationary period (or 600 hours of employment). For more information, visit http://oregon.gov/PERS.

Supplemental Life Insurance: Administered by Standard Insurance Company, this optional coverage is employee-paid.

each year the Plan pays an additional 10% of covered services until, in the 4th year, it is paying 100% of covered services up to the annual limit of $1,500 per family member. Includes $1,000 of orthodontic coverage (lifetime maximum). Employees are also given the option of choosing the Willamette Dental plan (see attached for details).

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   Submit the charges to Blue Cross for processing. After Blue Cross responds to the claim submitted for these charges you will receive an Explanation of Benefits (commonly referred to as the EOB) stating how and why they processed the claim. Office staff also needs a copy of the EOB to process the reimbursement.
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   b. The expenses were not applied to the annual deductible since the deductible is covered under Part 1 of the Wellness Program.

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Section XI - Appendices

ADMINISTRATIVE POLICY LAST MODIFICATION:

08-06.2

ORIGINATING DEPARTMENT: Ashland Parks and Recreation, City of Ashland

SUBJECT: Military Leave Policy

PURPOSE: To establish a City policy in accordance with the requirements of ORS 408.290 establishing benefits for public employees on annual active duty for training in the Armed Forces.

STATEMENT OF POLICY: The City of Ashland supports employee participation in military service and training and will not discriminate, penalize or retaliate against any employee requesting time off to meet military obligations for annual active duty for training. The City will grant up to 15 days in any one training year for annual active duty for training, without loss of pay or benefits that the employee would otherwise be entitled to. The following policy details the City's procedures for granting Military Leave.

Length of Leave

An employee with at least six months tenure with the City of Ashland shall be entitled to time off for annual active duty for training as a member of the National Guard, National Guard Reserve, or any reserve component of the Armed Forces of the United States. Employees who meet the minimum employment criteria will be granted up to 15 calendar days per training year away from their job duties for military service. Such leave will be paid by the city at the employee's regular rate of pay. Leave for temporary active duty for training can be taken at once, or on an intermittent basis throughout the training year, and may be supplemented with other paid non-military leave with supervisor's prior approval.

Approval Process

An employee requesting military leave must provide the employee's supervisor a copy of the active duty training orders prior to leaving for military service. A copy with endorsements upon completion of duty may also be required. If the employee does not have written orders, the employee must contact the employee's training officer and request evidence in writing of the summons to service. The employee must give the City as much advance notice as possible to ensure undue scheduling hardship does not occur.

Tracking of Leave

For the purposes of this policy, a training year is defined as the federal fiscal year, which begins October 1 and ends September 30. Employees should report the time served appropriately on their time sheets as "military leave" to receive compensation at their regular rate of pay. Employees who take military leave will not be penalized for absence from their work duties.

Approved: _____ *Don Robertson, Director* _____ *Date*

Reviewed as to form: _____ *Mike Franell, City Attorney* _____ *Date*

CITY OF ASHLAND

Travel Expenses & Reimbursement
REQUEST FORM

Date of Request:

THIS REIMBURSEMENT REQUEST IS FOR:

☐ An Advance for upcoming Business Trip
☐ A reimbursement post Trip

If for an Advance, when is the Check needed?

Name:
Department/Division:
Conference Name or Trip Purpose:
Location of Event:
Dates of Event:

**Please attach a copy of conference schedule and/or trip itinerary to this Request Form.*

MEAL PER DIEM

	Day 1	Day 2	Day 3	Day 4	Day 5	Day 6	Day 7	
DATE OF PERDIEM REQUEST →								
Breakfast ($6.00/Day Maximum)	$	$	$	$	$	$	$	
Lunch ($7.00/Day Maximum)	$	$	$	$	$	$	$	
Dinner ($17.00/Day Maximum)	$	$	$	$	$	$	$	MEAL PER DIEM TOTAL
TOTAL DAILY PER DIEM → ($30.00/Day Maximum, No receipts required unless Supervisor Authorizes more than Per Diem Maximum)	$	$	$	$	$	$	$	$.

Account Number ___-__-__-__-606330

LODGING

Room Rate + Tax		TOTAL LODGING REIMBURSEMENT (Receipts Required for Reimbursement)
Number of Nights		$.

Account Number ___-__-__-__-606320

TRAVEL

Mileage Rate:	Total Miles Traveled at Appropriate Mileage Reimbursement Rate	
☐ A City Vehicle is NOT Available (Mileage reimbursement rate is $ .405/mile)	_____ X $ .505/mile = $	TOTAL MILEAGE REIMBURSEMENT
☐ A City Vehicle is Available and I am choosing to use my personal vehicle (Mileage reimbursement rate is $ .202/mile)	_____ X $ .253/mile = $	$.

Account Number ___-__-__-__-606313

INCIDENTAL COSTS/MISC. EXPENSE

Decription of Incidental Travel Cost		TOTAL INCIDENTAL TRAVEL COST REIMBURSEMENT (receipts must be provided for reimbursem
		$.

Account Number ___-__-__-__-606340

NOTE: By signing this reimbursement request form, I certify that the above expenses were incurred while on official City Business and they are reasonable and necessary.

TOTAL TRAVEL EXPENSE REIMBURSEMENT (Please remember to attach receipts where required) $.

Employee Signature: _____ **Supervisor/Dept. Head Signature:** _____

ASHLAND PARKS & RECREATION

Employee Name _____

Mileage Reimbursement:

Date and Event	Start Mileage	Ending Mileage	Total miles traveled

Personal vehicle mileage reimbursement – Parks car not available
Total Mileage _____ X .505 = _$_____

Account Number _____.___.___.___.606313

****Attach to the Employee Reimbursement for approval signatures****
To help calculate your mileage please log on to http:// ww.tripcheck.com/General/milecalc.htm

ADMINISTRATIVE POLICY

LAST MODIFICATION: September 7, 2001

09-07.01

ORIGINATING DEPARTMENT: Administration

SUBJECT: Travel & Expense Reimbursement Policy

PURPOSE: This sets forth the City's policy as it relates to travel and reimbursement for City employees while on city-related business.

STATEMENT OF POLICY: This policy applies to the employees and elected officials of the City of Ashland.

POLICY:
The City of Ashland will pay for all reasonable and necessary travel expenses for representatives of the City. Any request for an advance or reimbursement of travel expenses should be made using the City of Ashland Travel Expense and Reimbursement Request Form. Conference registration materials must accompany the request. Unless otherwise indicated, detailed receipts must support the following expenses:

Meal Per Diem:
The maximum allowance for meals is $30 per day. If a meal is provided as part of the conference registration no per diem will be granted for that meal, regardless of whether the employee participates in the conference provided meal. No receipt is required for the meal per diem.

Meals will be advanced/reimbursed at the following daily rates:

- Breakfast - $6.00
- Lunch - $7.00
- Dinner - $17.00

The maximum daily meal allowance will be limited by the amount of time spent on official city business away from home. (e.g. If an employee leaves for a conference at 3:00 PM, no breakfast and lunch meal allowance will be granted). No additional reimbursement will be given to an employee who spends more than the allowance amount on meals without approval from Department Head.

Lodging:
The City will pay lodging in advance to the hotel, allow payment through billing by city credit card, or by reimbursement if paid for by the employee. Every effort should be made to secure reasonably-priced accommodations for the area being traveled to. Employees are encouraged to request the "government rate" when securing lodging accommodations. A detailed receipt is required in all cases.

Travel:
Employees should work with their supervisor to determine the most cost efficient means of travel. Travel by air is to be purchased at the lowest available rates through travel agents, on-line or by direct means. Mileage points, discounts, or rebates earned for travel on city business may only be redeemed on future travel for city business and in no case should they be used for personal travel perks. A detailed receipt is required in all cases.

Employees who travel by car are encouraged to use a City vehicle and a City gasoline credit card (gasoline cards are available in Administration or by Department). It is acceptable to take a city vehicle outside of Oregon. Reimbursement will be as follows:

- When a city car is **not** available, the reimbursement rate for non-union employees will be the standard Federal IRS mileage reimbursement rate.

- When a City vehicle is available, and the employee chooses to use the employee's own vehicle, the reimbursement rate is half the federal IRS mileage reimbursement rate, unless the department head determines it is in the best interest of the city to pay the standard Federal rate.

- Personal vehicle use for local travel will be at the standard Federal rate.

Method of travel should have prior approval of the supervisor. In some cases, travel reimbursement may be limited to the cost for reasonable, public transportation as determined by the Department Head.

Incidental Costs:
Incidental costs for parking, transportation to and from the airport, taxi fares, rental car costs (including added insurance if necessary), etc. will be reimbursed upon presentation of a receipt. The City will not reimburse expenses for entertainment, purchase of alcoholic beverages or any unnecessary or unreasonable expenses.

Advance Expenses:
To lessen personal financial obligations, an advance is available prior to travel. To qualify for an advance, a Travel Expense and Reimbursement Request form must be presented to the Finance Department at least two weeks prior to the scheduled trip. Conference registration materials must accompany the request.

Receipts:
Upon the conclusion of a business trip, detailed receipts must be presented to the Finance Department for advances given or to support reimbursement to the employee. Receipts are required for all reimbursable business and travel expenses except meals that fall within the guidelines.

*** All advances and reimbursement requests are subject to final approval by the Department Head.**

Approved: _____ Date: _____
Greg Scoles, City Administrator

Reviewed as to form: _____ Date: _____
Paul Nolte, City Attorney

Ashland Parks and Recreation

VACATION LEAVE DONATION PROGRAM

This policy applies to all regular Parks and Recreation employees.

WHO IS ELIGIBLE:

In order to receive donated vacation leave, an employee or an employee's immediate family member must have a serious or extended illness or injury. The employee must be employed in a regular position (full-time and part-time). A physician's statement may be requested. Any time used in accordance with this policy must be clearly noted on the employee's time sheet as "Donated Leave."

Available for employee/immediate family member illness or injury only.

No other compensable benefits may be available to the receiving employee. He or she must have exhausted all sick leave, vacation, personal leave, floating holidays, excused time, and worker's compensation. However, if all other leaves have been exhausted, donated hours may be used to cover the waiting period before disability insurance begins.

WHO CAN DONATE LEAVE:

Full-time employees must have a sick leave balance of at least 100 hours prior to the donation and part-time employees must have at least 50 hours of sick leave remaining prior to the donation. An employee may donate or receive donated leave twice per calendar year.

No other compensable benefits may be available to the receiving employee. He or she must have exhausted all sick leave, vacation, personal leave, floating holidays, excused time, and worker's compensation. However, if all other leaves have been exhausted, donated hours may be used to cover the waiting period before disability insurance begins.

CONFIDENTIALITY:

Any donation of vacation leave must be strictly voluntary. Solicitation by department heads, supervisors or co-workers is not permitted. Upon request, the Personnel Director may give notice to City employees of the request for such vacation leave transfer.

All contributions shall be confidential. Completed Vacation Leave Transfer Request Forms should be sent directly from the donating employee to Personnel.

The donating employee must sign a release document to initiate a vacation leave transfer. The document will be kept on file in the Personnel Office.

WHEN DONATED TIME IS NOT USED:

If circumstances arise where the employee does not use any of the time donated within (1) year of the first donation, the transaction will be void and all leave will return to the donating employee(s). If a portion of the donated vacation leave remains unused for (1) year of the first donation, it will be pro-rated and returned to the donor(s).

- If the recipient of the donated time separates from employment with the City for any reason, the balance of the leave will be pro-rated and returned to the donor(s).
- If the donor separates from employment with the city for any reason, they are not entitled to payment for leave they have donated to another employee.

POLICY PARAMETERS:

Transfers of vacation leave will be on an hour-for-hour basis. Minimum contribution is eight (8) hours and part-time employees must contribute at least four (4) hours.

The maximum time that can initially be donated to any employee is 240 hours (pro-rated for part-time employees). At that time, the receiving employee can apply for an extension if necessary.

An employee utilizing donated vacation leave will continue to accrue benefits and leave time, but must exhaust leave as it is accrued.

Donated time may be used by an employee in conjunction with, not in addition to. Oregon's Family Medical Leave Act (FMLA). Time available to an employee for employee/immediate family member illness or injury may not exceed the Oregon FMLA limits of twelve (12) weeks per calendar year.

The City Administrator may modify the vacation leave transfer guidelines as necessary.

The Personnel Office in cooperation with Payroll will administer the Vacation Leave Transfer procedure.

Approval:_____ _____

Don Robertson, Director *Date*

DEFINITIONS:

Extended	**A period of four or more consecutive weeks absence from work due to unforeseen illness or injury.**
Serious	**An unforeseen illness or injury occurs that requires extended hospitalization or home confinement.**
Physician's Statement	**A written document on appropriate letterhead, which reflects a full diagnosis of the illness and prognosis to include anticipated date of recovery provided by a licensed physician.**
Immediate FamilyMember	**Refers to the employee, employee's spouse, child, parent, parent-in-law and others covered by their medical plan.**

Vacation Leave Donation
REQUEST FORM

_____ _____

Donor Name ***(Please Print)*** **Donor Employee Number**

I wish to donate _____ hours of my vacation *time (8 hour minimum for full-time employees, 4 hour minimum for part-time employees)* to_____ in the _____ Department. I acknowledge that this is a voluntary donation and, that in order to qualify, I currently have a sick leave balance of at least 100 hours *(50 hours for part-time employees)*. I understand that the donation transferred per this request is NON REFUNDABLE unless the recipient does not use all of the donated leave within (1) year of the first donation at which time the leave will be returned on a pro-rated basis as dictated by the policy. Use of leave must comply with the program guidelines.

_____ _____

Signature of Donor **Date**

_____ _____

Director Approval **Date**

SECTION 4

Drug Free Workplace

4.1 DRUG FREE WORKPLACE

The City of Ashland recognizes that the use of drugs and alcohol which adversely affect job performance may constitute a serious threat to the health and safety of the public and employees and to the efficient delivery of City services. The use of illegal substances and abusive use of controlled substances by employees not only affect job performance, but decrease productivity, lower morale, and create a hazardous environment. City employees are expected and required to report to work on time and in appropriate mental and physical condition for work.

Pursuant to the Drug Free Workplace Act of 1988 and in response to the growing awareness of substance abuse, the manufacture, distribution, dispensation, possession, or use of unlawful drugs while on City premises or while conducting City business is strictly prohibited and will not be tolerated. Violations of this policy will result but is not limited to disciplinary action, up to and including termination. The following conduct is prohibited while on duty or on paid standby:

Unlawful buying, selling transportation, possession, providing or use of drugs.

Use of alcohol.

Being under the influence of alcohol.

Being under the influence of drugs.

Having a detectable odor of alcohol on the breath.

Failure to report limitations or impairment caused by prescribed drugs or over the counter drugs.

This policy is not intended to prohibit the safe and legal use of prescription and non-prescription medications. However, employees taking medication that may impede or otherwise affect their ability to safety and efficiently perform job assignments shall report the medication to their supervisor or Department Director immediately.

Employees needing help in dealing with substance abuse problems are encouraged to use the Employee Assistance Program and health insurance plans, as appropriate. It is the desire of the City to help these employees, while at the same time ensuring that they will not endanger themselves or other persons. However, violations of this policy will result in disciplinary action. Continued poor performance, or failure to successfully complete a rehabilitation program, are grounds for dismissal.

Employment with the City is conditional upon the employee's acceptance of the terms of this policy. As mandated by the Drug Free Workplace Act, any conviction for a violation of a criminal drug statute occurring in the workplace shall be reported to the City in writing no later than five calendar days after the conviction. Once a verifiable conviction is reported, the City will be required to notify the Federal Justice Department within ten days after receipt. Incumbents in positions covered by the Department of Transportation's Mandatory Drug and Alcohol Testing Regulations will also abide by those requirements.

As part of the City's efforts to educate all employees about the potential personal and professional hazards of substance abuse, the City will provide an annual mandatory educational program. The City will provide a copy of the drug policy to all employees and include this policy in its orientation to new employees. Supervisors will also be required to attend a training program to help them recognize, document and handle performance-related issues. Additional information is available through the City's Employee Assistance Program or by contacting Human Resources.

4.2 PRE-EMPLOYMENT DRUG TESTING

The Parks Commission, in a positive effort to provide a safe working environment for all its employees and the citizens of the community, will require a pre-employment drug screen. Finalists for City jobs must successfully pass the drug screen test as a final condition of the job offer. The confirmed presence of any illegal drug in a urine sample will be cause for disqualifying an applicant. If an applicant is taking prescription medication, this must be substantiated by physician's report or statement. The report should indicate whether or not the taking of these legal drugs will prevent or alter the person's ability to perform essential job duties. If the report indicates the person cannot perform essential job duties while under the influence of these prescribed legal drugs, this shall be grounds for disqualification.

4.3 CURRENT EMPLOYEE TESTING

All current employees are subject to drug and alcohol testing as described below.

A. Reasonable Suspicion Testing.

Where we have a reasonable suspicion that an employee is in violation of this policy, the employee will be required to submit to testing to determine the presence or use or any involvement with alcohol or drugs. The City reserves the right to determine whether reasonable suspicion exists.

Reasonable suspicion or circumstances that could be indicators of a drug problem and considered reasonable suspicion include the following:

1. Observed drug use during work hours or on work site premises, or employee admissions regarding such use.

2. Apparent physical symptoms of impairment.

3. Incoherent mental state.

4. Marked or significant changes in personal behavior or performance that are otherwise unexplainable.

5. Credible reports of alcohol or drug use in violation of this policy or credible reports of off-the-job illegal drug use or excessive alcohol use.

6. Accidents or other actions that provide reasonable cause to believe the employee may be under the influence of drugs.

B. Post Accident Testing.

Any employee involved in or otherwise causing a job-related accident which requires medical treatment by a physician or by City medical personnel will be required to take a drug test immediately following the accident or at the time of initial treatment by a medical care facility.

Any employee involved in or otherwise causing an accident resulting in what the City deems substantial damage to work site property or to another's property while the employee is conducting City business may be required to take a drug test. Also, "near miss" incidents, where there is no personal or physical damage or injuries, will be evaluated and a determination will be made if there is a reasonable suspicion basis to test for drugs for any or all employees involved.

C. Random Testing.

We also reserve the right to conduct random or unannounced drug testing. This may include testing by random selection (a neutral, unbiased selection process will be used), or testing of an entire department or work unit.

D. Retest Option.

Any employee who tests positive by urinalysis testing is entitled to have the same specimen retested at the employee's expense. The employee must request such a retest in writing within three calendar days of receiving notice of the positive test result. The retest must be conducted at a certified and licensed laboratory acceptable to the City.

4.4 Additional Policy Procedures and Rules.

1. An employee who tests "positive" to any degree for any substance prohibited by this policy is in violation of this policy. The City has a zero tolerance policy.

As a limited exception, there may be some City social functions or meetings where alcohol may be served with prior City approval, or situations where City sales employees or managers are allowed to consume alcohol. However, such consumption is never a business obligation and any use of alcohol in these circumstances must be done with extreme moderation and confined to off-duty or evening hours when no further City work will be required. Do not drive after drinking on these occasions – the City will reimburse for cab fare when provided with a receipt.

2. For purposes of this policy, under the influence of drugs is any detectable level of alcohol or drugs in the individual's system (based on the results of urinalysis or Breathalyzer testing), or any noticeable or perceptible impairment of the employee's mental or physical faculties.

3. Failure to give written consent, without qualification, to testing, or failure to provide samples for testing will be considered insubordination, and grounds for immediate suspension and later termination. In addition, failure to permit an urinalysis test or Breathalyzer upon request will be considered the same as a positive test.

4. If an employee is covered by Department of Transportation regulations, additional testing requirements will apply and will be enforced.

5. Employees who are medically authorized to use over-the-counter drugs or prescription drugs which might impair job performance are responsible to determine from a physician whether or not the substance is capable of impairing job performance. If it could, the employee must report the use of the substance to his or her immediate supervisor and provide proper written medical authorization from a physician that it is safe for the employee to work while using such authorized drugs.

6. Employees are required to notify the City of any criminal drug statute arrest or conviction no later than five (5) days after such arrest or conviction.

7. We recognize that situations may arise which are not specifically covered by this policy and these guidelines. Such situations will be dealt with on a case-by-case basis taking into account such things as the nature of the situation or problem, the employee's overall employment record and job assignment, the potential impact on production and safety and customer relations concerns.

4.5 Post-Rehabilitation Testing.

All employees undergoing a treatment program (voluntarily, or with the City's agreement in order to avoid discipline) will be required as a condition of reemployment to sign a "re-entry contract," promising to stay free from the effects of drug or alcohol abuse on the job, and to comply with the

treatment program in the future, as a condition of continued employment. This contract is the employee's promise not to use drugs or abuse alcohol that might affect the workplace in the future. This contract may require unannounced testing of the employee to make sure the employee is keeping his contractual promises. Violation of a re-entry contract will subject an employee to termination.

Equal Opportunity Employment

RESOLUTION NO. 1993-17

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ASHLAND, OREGON, READOPTING AN EQUAL EMPLOYMENT OPPORTUNITY POLICY AND AFFIRMATIVE ACTION PROGRAM FOR THE CITY OF ASHLAND AND REPEALING RESOLUTION NO. 89-35.

RECITALS:

A. The goal of equal opportunity for all has long been expressed as the American ideal. The City of Ashland functioning through all levels, accepts its legal and moral obligation to society and its citizens and by this resolution sets forth its Equal Employment Opportunity Policy and Affirmative Action Program.

B. An affirmative action program must be designed to achieve the purposes of Title VII, i.e., to break down old patterns of segregation and disparity in order to overcome the effects of past or present practices, policies, or other barriers to equal employment opportunity.

C. The legislative history of Title VII indicates that Congress intended that voluntary compliance with Title VII be the primary method of eliminating and preventing employment discrimination.

D. The Supreme Court has reaffirmed that compliance with the congressional mandate of 1964 may involve voluntary affirmative action. Such action being designed for the purpose of eliminating and preventing imbalances in traditionally segregated job categories.

E. The policy of the City of Ashland, Oregon, is to provide equal employment opportunities for all persons from all segments of the population without discrimination as to race, color, religion, marital status, age, national origin, sex, sexual orientation or disability, unless based upon a bona fide occupational qualification; with particular emphasis on minorities and women. Ashland's policy is a positive one and consistent with State and Federal laws and orders.

THE CITY COUNCIL OF THE CITY OF ASHLAND resolves as follows:

SECTION 1 The attached Equal Employment Opportunity Policy and Affirmative Action Program is adopted as the policy and program of the City of Ashland.

SECTION 2 The City Recorder is directed to forward copies of this resolution to all City Department Heads, the Board of Directors of the Ashland Community Hospital and the Ashland Parks & Recreation Commission.

SECTION 3 The duties and responsibilities allocated within this plan are intended solely for the internal guidance of the City of Ashland. Nothing in this plan creates or authorizes or is intended to create or authorize any past or future private right of action by any individual, group of individuals, organization or corporation alleging non-compliance with this plan or seeking compliance with this plan.

SECTION 4 Resolution No.89-35 entitled "A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ASHLAND, OREGON, ADOPTING AN EQUAL EMPLOYMENT OPPORTUNITY POLICY AND AFFIRMATIVE ACTION PROGRAM FOR THE CITY OF ASHLAND" is repealed.

This resolution was read by title only in accordance with Ashland Municipal Code §2.04.090 and duly PASSED and ADOPTED this 5 day of May 1993.

Barbara Christiansen, City Recorder

Re. wed as to form:

Mike Franell, City Attorney

CITY OF ASHLAND

Equal Employment Opportunity Policy and Affirmative Action Program

1. POLICY STATEMENT The City of Ashland is committed to the policy of equal employment opportunity (EEO) and shall not discriminate against an employee or applicant for employment because of race, color, religion, sex, sexual orientation, age, marital status, national origin, or mental or physical disability unless based upon a bona fide occupational qualification. This Affirmative Action Program (AAP) describes how the City will take affirmative action to employ and advance in employment, qualified women and minorities as well as offer equal employment opportunity to all.

2. DESIGNATION OF EEO/AAP OFFICER

2.1. To carry out the letter as well as the spirit of the City EEO/AAP, the City Council appoints the Personnel Director as the EEO/AAP Officer. The EEO/AAP Officer will lead the commitment to maximize equal employment opportunity and take affirmative action for the City of Ashland.

2.2. The duties of the EEO/AAP Officer are:

2.2.1. To assist and counsel all management personnel regarding their EEO/AAP responsibilities.
2.2.2. Counsel minority and women employees on employment matters.

3. MANAGEMENT RESPONSIBILITY
It is the responsibility of all supervisory staff and managers to implement the Equal Employment Opportunity Policy and Affirmative Action Program.

3.1. City Administrator The City Administrator shall have overall administrative responsibility for and shall provide positive leadership in implementing the City's Equal Employment Opportunity Policy and Affirmative Action Program.

3.2. Department Heads Department Heads shall assist the EEO/AAP Officer in the identification of problem areas, and formulation of solutions and shall ensure that all supervisors in their department understand the EEO/AAP and the necessity of their support for effective implementation.

4. DISSEMINATION OF EEO/AAP INFORMATION

4.1. Internal Communication

4.1.1. During employee orientation new employees will be notified of the City's commitment to the EEO/AAP.
4.1.2. At least once a year, a meeting will be set up for all supervisors to review with them their general responsibilities regarding the EEO/AAP.
4.1.3. Required EEO posters and the City's policy shall be posted on all employee bulletin boards.
4.1.4. Every employee shall be informed of whom questions can be directed and to whose counsel may be sought should they have complaints regarding City EEO practices.
4.1.5. Every employee shall be personally informed of the existence of the internal grievance procedures set under this plan for handling complaints of discrimination.

4.2. External Communications

4.2.1. All employment advertisements shall contain the words "An EEO/AAP Employer."

4.2.2. Employment application forms shall contain the following clause: "The City of Ashland is an equal opportunity employer and shall not discriminate against an employee or applicant for employment because of race, color, religion, sex, sexual orientation, age, marital status, national origin or mental or physical disability unless based upon a bona fide occupational qualification."
4.2.3. Notification shall be sent to employment sources, including women's and minority organizations informing them of the City's EEO/AAP.
4.2.4. Notice of all regular job openings shall be sent to appropriate sources.

5. PERSONNEL PRACTICES

5.1. Recruitment

5.1.1. Interest in employment opportunities in the City shall be stimulated by our participation in appropriate activities in the local area.
5.1.2. Recruitment trips outside the local area may be made to solicit applications from minorities and women. This may be particularly necessary when recruiting for professional or managerial positions.
5.1.3. Efforts to hire minority and women employees for temporary positions may be made to encourage their interest in full-time employment opportunities with the City.

5.2. Job Analysis and Restructuring

5.2.1. Class specifications shall be periodically reviewed to assure they are related to job content and are set at the minimum level needed for entrance into the job.
5.2.2. Where feasible, jobs should be restructured to provide easier access by minorities and women.

5.3. Selection Process

5.3.1. Where appropriate, tests other than paper and pencil varieties may be used. Experimentation with performance testing may be undertaken.
5.3.2. Written tests shall be used as only one of the factors in the selection decision.
5.3.3. Retesting may be permitted as soon as candidates can show reasonable effort to prepare themselves for such a retest.
5.3.4. Open competitive exams shall be scheduled as often as appropriate.
5.3.5. Application blanks and interview questions will be regularly reviewed to ensure all questions not related to job performance or which operate to the detriment of minorities and women are eliminated.
5.3.6. Other selection criteria such as physical or education requirements shall be periodically reviewed, and revised to ensure job relatedness. Specifically this includes, but is not limited to, educational degrees, years of work experience, etc.
5.3.7. All interviewers shall be carefully selected and instructed. Where feasible, minority or women interviewers should be utilized.

5.4. Promotion, Job Assignment and Discipline

5.4.1. Selection for promotion, job assignment and imposition of discipline shall conform to the practices outlined in the preceding action.
5.4.2. Where feasible, training shall be set up to enhance promotability of minorities and women.
5.4.3. No applicant shall be denied a promotion or job assignment on the basis of any prohibited criteria.
5.4.4. Exit interviews will be conducted in the case of voluntary resignations of minorities and women to see if any factors under our control are responsible for their leaving.

5.5. Harassment All City employees are responsible for maintaining a work environment that is free of harassment which is based on race, ethnicity, religion, disability, sex or sexual orientation. For the purpose of this plan, harassment shall mean unaccepted and/or unwelcome conduct that (1) has the

purpose or effect of creating an intimidating, hostile, or offensive work environment, and (2) is sufficiently pervasive so as to alter the conditions of employment. All managers and supervisory staff are required to take immediate and appropriate corrective action, including but not limited to: affirmatively raising the subject, expressing strong disapproval, and disciplinary action, if appropriate, etc., when informed or otherwise aware of this prohibited misconduct. In addition, managers and supervisors are responsible for following up on the action taken to assure the harassment has been eliminated.

5.6. Training

5.6.1. Whenever the City sponsors any training activity, special attention and consideration shall be given to securing the participation of minorities and women.
5.6.2. Where jobs can be learned in a short period of time, formal on-the-job training programs may be instituted to facilitate the movement of women and minority candidates with minimum qualifications into these positions.
5.6.3. Where formal training is necessary to qualify an individual for a job, in-house training programs may be established.
5.6.4. To the extent feasible, work schedules of minorities and women employees shall be adjusted so as to permit their participation in training programs.
5.6.5. Supervisory training programs shall be conducted to improve supervisory skills relative to working with women and minority employees.
5.6.6. Individual counseling of supervisors by the EEO/AAP Officer shall occur as necessary, particularly for those supervisors responsible for on-the-job training of minorities and women.
5.6.7. Where lack of resources restrict training opportunities that we can offer, we may seek the cooperation of other employers in requesting local educational institutions to set up training programs so as to increase the numbers of qualified women and minorities in the labor force.

5.7. Compensation Pay rates shall be reviewed and adjusted as appropriate, particularly in light of the results of the job analysis, and reclassification, efforts described above.

5.8. Grievance Procedures

5.8.1. Employees shall be encouraged to informally seek the advice and counsel of the EEO/AAP officer when they suspect they may have been treated in a discriminatory fashion.
5.8.2. The EEO/AAP Officer shall accept, investigate and attempt to resolve complaints of discrimination from employees or applicants for employment.
5.8.3. Employees covered by a negotiated labor contract containing a grievance procedure may use it in seeking relief from alleged discriminatory practices.

6. OBJECTIVES

6.1. Work Force and Labor Market Analysis The EEO/AAP Officer shall conduct a census once a year of City employees by position classification to assess current utilization patterns for women and minorities and labor market availability.

6.2. Reporting System

6.2.1. The EEO/AAP Officer will present a report yearly to the City Administrator to show the current status of the work force as it compares to the previous year and labor market availability.
6.2.2. This report shall become the agenda for a meeting of top level management.
6.2.3. The EEO/AAP Officer shall prepare and submit the EEO-4 report to the Equal Employment Opportunity Commission.

6.3. Goal The goal of the City of Ashland is to employ qualified women and minorities in all job categories in proportion to their availability in the labor market.